

**Comment in the Matter of Twitter, Inc./X. Corp., Docket No. C-4316 (FTC-2026-0727)**

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**Docket:** C-4316 (FTC-2026-0727)

**Deadline:** 2 July 2026

1. This comment addresses the petition of X Corp. to reopen and set aside, or in the alternative modify, the Decision and Order entered May 26, 2022.

2. Section V of the 2022 Order requires Respondent to designate an officer responsible for data use decisions, conduct periodic risk assessments, and submit to independent third-party audits. These obligations track duties of care and loyalty of the kind imposed on fiduciaries. The Order functions, in substance, as an information fiduciary regime created by consent decree rather than by statute (Balkin, 2016).

3. A fiduciary framing of platform obligations does not reach the structural fact that a single company now controls not merely the personal data of discrete individuals but the aggregate substrate from which large language models are trained (Khan and Pozen, 2019). The Commission need not resolve whether fiduciary duties alone were ever adequate to that task. It is enough to observe that the petition asks the Commission to remove even this partial mechanism while offering no structural alternative in its place.

4. The petition supplies the material needed to assess what such an alternative would require. It states that X operates at the center of a family of companies, including xAI, at the forefront of artificial intelligence, and that terminating the Order is critical to advancing American leadership in artificial intelligence. The petition thereby characterizes the infrastructure the Order governs as a strategic national asset.

5. That characterization carries consequences the petition omits. Where this Administration has treated infrastructure as

strategically critical, its practice since 2025 has not been deregulation. It has been the direct acquisition of governance and equity interests: a nonvoting equity stake in Intel, a governance stake in MP Materials, a golden share in United States Steel Corporation carrying veto authority over plant closures and other material decisions. Each arrangement was adopted because reliance on ordinary private ownership was judged insufficient to protect an interest the government itself defined as strategic.

6. Historical practice confirms that this class of asset can be placed under public control outright when Congress finds it necessary. In December 1917 the President placed the nation's railroads, together with their telegraph and telephone lines, under federal operation for the duration of the war effort, an order Congress ratified through the Railroad Control Act of 1918, with the properties returned to their owners, and compensation paid, once the wartime necessity had passed. The limit on this power is equally settled. In *Youngstown Sheet and Tube Co. v. Sawyer*, 343 U.S. 579 (1952), the Supreme Court held that seizure of a comparably vital industry required a grant of authority from Congress and could not rest on executive claim of emergency alone. Read together, these episodes confirm that the remedy the petition's own logic invites exists, has been used for infrastructure judged critical to national security, and requires action beyond any single agency's order.

7. Data of the kind at issue here, which is contact information for security purposes repurposed first as an advertising signal and now as a training substrate for large language models, no longer behaves as personal property capable of being identified, returned, or deleted on request. It behaves as shared infrastructure. Privacy law, echoing tort, protected the individual's interest in being left alone (Brandeis and Warren, 1890). Data protection, modeled after property, protected the individual's interest in a discrete record (HEW, 1973). Neither model reaches infrastructure that sustains a system larger than any individual claimant, and a duty of care grafted onto that infrastructure does not settle who governs it.

8. The petition should not be treated as presenting a choice between the Order as written and its termination. The public interest supports a third outcome, one the Commission can advance within its own authority even though it cannot supply the full structural remedy alone. The Commission should decline to set the Order aside and should state expressly that the petition's own characterization of Respondent's infrastructure as nationally strategic warrants the durable public interest that Congress has authorized in comparable circumstances, so that any further modification proceeds alongside that broader determination rather than apart from it.

9. For these reasons, the Commission should deny the petition, decline to modify the Order unless the structural public interest identified above is addressed, and refer the national security characterization that the Respondent has advanced in its own petition to the appropriate committees of Congress and interagency bodies for consideration of partial nationalization alongside this proceeding.

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